

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANTE SMITH,

Petitioner

VS.

CIARRA WALKER-SMITH,

Respondent

) Case Number: FPT-23-378122

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Dante Smith (Father) and Respondent Ciarra Walker-Smith (Mother).
- 2) On June 5, 2026, Mother filed an Order to Show Cause and Affidavit for Contempt alleging 5 counts of contempt committed by Father. The matter was set for hearing on July 16, 2026.
- 3) As of July 9, 2026, no proof of personal service of the Order to Show Cause and Affidavit for Contempt was filed with the Court.
- 4) At the prior July 16, 2026 hearing, the Court continued the matter to August 27, 2026 to permit Mother to effectuate personal service on Father.
- 5) On August 13, 2026, Mother filed a Proof of Electronic Service indicating the Order to Show Cause and Affidavit for Contempt was served on Father by email.

B. Findings and Order

- 1) Per *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, personal service of Order to Show Cause and Affidavit for Contempt-on-contempt citee (i.e., Father) is required.

- 1 2) As such, the matter is hereby **continued – for one final time – to October 20, 2026 at 9:00 a.m.**
2 **in Department 403** to permit Mother to effectuate personal service on Father.
- 3 3) If personal service is not effectuated prior to the next hearing date, the Court will vacate the
4 hearing.
- 5 4) The Court will prepare the Findings and Order After Hearing.
- 6 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
7 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
8 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
9 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
10 proposed order after hearing directly to the court. Failure to submit the order after hearing within
11 10 days may allow the other party to prepare a proposed order and submit it to the court in
12 accordance with CA Rules of Court, Rule 5.125(d).
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